
The World's Most Hated Ticket Company Is Finally Being Forced to Change

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Live Nation and Ticketmaster are not breaking up. On Monday, the Justice Department announced a [settlement](#) of its antitrust case against the live entertainment juggernaut just a week into the trial. Under the terms conditioned for the settlement, Ticketmaster will remain a subsidiary of a corporate giant that already owns everything from performance stages to music festivals to event promoters—to the chagrin of [performing artists](#) and pro-antitrust lawmakers.

The whole outcome is mighty unusual—and unfinished. The judge overseeing the case was [not made aware](#) of the settlement negotiations, and has yet to sign off. Meanwhile, a majority of the states that joined the federal government as plaintiffs have objected to this deal, and the judge has given them permission to [continue fighting their case next week](#) should they fail to reach their own settlements with Live Nation.

So, however disappointing the initial result may be for everyone who desired *some* accountability for Ticketmaster's myriad sins (crashing during "[Eras](#)" tour sales, overcharging venues and [attendees](#), teaming up with [scalpers](#)), the fight is not over. And the current deal also comes with notable concessions that clamp down on some of Live Nation's most risible business practices. Bit by bit, the near-unanimous public antipathy toward Ticketmaster is gradually transforming audiences' ticket-buying experience for the better—in large part by opening up access to competitors eager to demonstrate that they're *not* the dreaded, hated Ticketmaster.

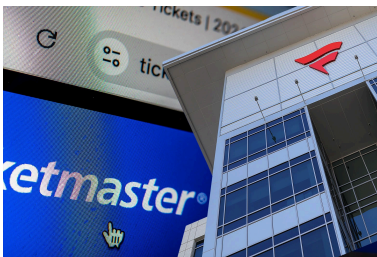
It's worth noting that complaints against Live Nation were [never solely preoccupied with Ticketmaster divestment](#). When the DOJ first filed suit in 2024, it targeted an [array](#) of the conglomerate's monopolistic tactics. The complaint accused the company of forcing venues into long-term, exclusive contracts with Ticketmaster, crowding out prominent competitors like StubHub and SeatGeek. It also alleged that Live Nation punished venues that *didn't* willingly choose Ticketmaster by threatening to withdraw business opportunities with Live Nation's other properties, including music festivals and artist promotions. And it claimed the company charged American consumers more than foreign customers through excessive transaction fees. (Remember [how much cheaper](#) those Taylor Swift shows were in England than in the U.S.?) The government had receipts: In court last week, a former Barclays Center executive played a [threatening voicemail](#) he'd received from Live Nation's CEO in 2021 after choosing SeatGeek as Barclays' ticket vendor, an act that lost the venue over a dozen Live Nation–promoted shows. (The arena has since re-partnered with Ticketmaster.)

But Live Nation, which never wanted this thing to go to court, successfully leveraged its power to weaken the case as it stood. Over the past year, it hired [Trump allies](#) as advisers and deployed them to [lobby](#) the DOJ for a settlement. Even though it couldn't halt the case, Live Nation notched some significant wins: [the ouster](#) of the DOJ's Ticketmaster-skeptical antitrust chief, and the successful dismissal of government [charges](#) that the company held monopolies over the concert promotion and booking sectors. That alone seemed to make for the most significant victory. "With those claims gone, we see no possible basis for breaking up Live Nation and Ticketmaster," executive Dan Wall [wrote](#) in a statement.

So it was already unlikely that even an ideal trial would have spurred the trustbusting that [everyone wants](#). But the feds had enough to get Live Nation to give in on some important fronts, even on matters outside the scope of the trial.

The company, which [owns 56](#) of the United States' highest-grossing amphitheaters, has to divest 13 of those stages, release them from their exclusive Ticketmaster contracts, and agree never to reacquire them. All other American amphitheaters owned by Live Nation have to be allowed to sell up to half of a given event's tickets through a different provider, if they so wish, without fear of retaliation. (Meanwhile, any future venue deals for *exclusive* Ticketmaster use are now limited to a four-year maximum.) Further, Ticketmaster will see some overhauls in basic functionality: All service fees will be capped at 15 percent of a given ticket's price, and the underlying software will be opened up for use by rival ticketers whom consumers and amphitheaters may prefer to patronize. The platform will also be forbidden from restricting such third-party ticket sales in any way, whether by leveling extra fees or by adding any glitches to competitor transactions. A federal monitor will be installed to ensure Live Nation abides by these terms over the next eight years.

No one would argue this is enough, and the advocacy groups [still pushing](#) for a full-on breakup are right to do so; in a statement to Slate, the anti-monopoly Demand Progress Fund called the outcome a "slap on the wrist that tinkers around the edges of the real problem: Live Nation's monopoly." Lauren Spahn, an intellectual property expert with the law firm Buchalter, also claims the service cap is less restrictive than it may appear. "Ticketmaster could put in a facility fee or an order-processing fee or something that doesn't fall under a 'service fee' but allows them to make up for that reduction," she said.



Alex Kirshner

Fanatics and Ticketmaster Make the Most Ambitious Antitrust Collaboration of All Time

Still, there's remarkable legal acknowledgement here of the very real harms affected by a powerful entity like Live Nation, and visible steps to fix a [broken process](#). Provided that these demands are diligently enforced, there are tangible benefits for everyone involved. Performing artists, who depend more than ever on live shows to make money, should no longer have their stage options limited [the way Billie Eilish's reportedly were in 2022](#), when Live Nation's feud with the Barclays Center prevented her from returning to the Brooklyn arena. Added competition will force even more [transparency around added fees](#), which will be reduced thanks to the prohibition on third-party service charges.

The impact of that is likely to show up across the ticketing sector, according to entertainment finance attorney Corey Martin. "There will likely be downward pressure on ticket prices in the long term," he wrote to me in an email. "The objective of this antitrust action was to ensure that, even in the era of dynamic price models, true competition amongst the key players in the ticket sales and reseller

marketplace would take hold.”

Neither Martin nor Spahn believes that the states’ lawsuit could revive hopes of a Live Nation breakup. But if it can wrest more power from Live Nation, that’s a worthy win in the short term. Another bonus of this settlement: Major venues—whether or not they’re owned by or contracted with Live Nation—will no longer have to direct customers to Ticketmaster’s interface by default, to the advantage of upstart ticketing companies like Dice, which is often [praised by its partners](#) for using extra guardrails to secure against resale price gouging and fraudulent bot-driven transactions.

That indicates another key bit of the fallout: further empowerment of the anti-Ticketmaster movement. The Federal Trade Commission still has an ongoing suit against Ticketmaster over its [egregious resale fees](#), and the momentum has trickled outward. New state and federal laws have imposed liabilities for scams like [automated mass-ticket purchases](#), while bills proposing caps on resale fees have [advanced](#) in California and New York. And industry observers are already directing [public scrutiny toward competitors like StubHub](#), also notorious for alleged price gouging. There’s a less pricey future out there for concertgoers, and the Live Nation settlement is only a first step toward achieving it.

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